

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

CASE OF MAKLASHIN AND OTHERS v. RUSSIA

(Applications nos. 70005/17 and 19 others –
see appended list)

JUDGMENT

STRASBOURG

30 March 2023

This judgment is final but it may be subject to editorial revision.



In the case of Maklashin and Others v. Russia,

The European Court of Human Rights (Second Section), sitting as a Committee composed of:

Lorraine Schembri Orland*, President*,
Frédéric Krenc,
Davor Derenčinović*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 9 March 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers and/or participants of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

6. The applicants complained principally of disproportionate measures taken against them as organisers and/or participants of public assemblies, namely the dispersal of these assemblies, as well as their arrest followed by their conviction for administrative offence. They relied, expressly or in substance, on Article 11 of the Convention.

7. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC],

no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

8. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

9. Having examined all the material submitted to it, having dismissed the Government's objection of non-exhaustion in application nos. 80792/17, 2567/18, 5283/18, 5324/18 and 5343/18, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

10. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

11. Some applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its well-established case-law (see *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 84-138, 10 April 2018, as regards unlawful administrative arrest, and *Karelin v. Russia*, no. 926/08, 20 September 2016, concerning examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences (CAO)).

IV. REMAINING COMPLAINTS

12. In view of its findings above, the Court considers that there is no need to deal separately with the remaining complaints under Article 6 of the Convention raised by some of the applicants in relation to other aspects of the fairness of the proceedings.

V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

13. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

14. Regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others v. Russia* [Committee], no. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table and dismisses the remainder of the applicants' claims for just satisfaction.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints concerning the right to peaceful assembly and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, and *decides* that it is not necessary to examine separately the remaining complaints under Article 6 of the Convention concerning other aspects of the fairness of the administrative-offence proceedings,

3. *Holds* that these applications disclose a breach of Article 11 of the Convention concerning the right to peaceful assembly;

4. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see appended table);

5. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

6. *Dismisses* the reminder of the applicants' claims for just satisfaction.

Done in English, and notified in writing on 30 March 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Lorraine Schembri Orland President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]
1.	70005/17 07/09/2017	**Boris Sergeyevich MAKLASHIN** 1997	Terekhov Konstantin Ilyich Moscow	Anti-corruption manifestation St Petersburg 12/06/2017	Article 19.3 § 1 of CAO, Article 20.2 § 5 of CAO	fines of RUB 500 and RUB 10,000, respectively	St Petersburg City Court 13/07/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - unreasoned arrest and detention on 12/06/2017; detention in excess of 3 hours; issue raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: St Petersburg City Court on 13/07/2017	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]
2.	80792/17 16/11/2017	**Aleksandr Yevgenyevich ZHEBREV** 1982	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-corruption manifestation Nizhniy Novgorod 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 17/05/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrested on 26/03/2017, at 4.10 p.m., brought to a police station to draw up a record of administrative offence, released on the same day at 8 p.m.; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Nizhniy Novgorod Regional Court on 17/05/2017	4,000
3.	82703/17 24/11/2017	**Yelena Yuryevna SHARAPOVA** 1986	Preobrazhenskaya Oksana Vladimirovna Strasbourg	Anti-corruption assembly Moscow, Pushkinskaya square / Tverskaya street 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 16/06/2017		3,500

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]
4.	84265/17 14/12/2017	**Igor Aleksandrovich KARKLIN** 1990	Terekhov Konstantin Ilyich Moscow	Anti-corruption manifestation Privokzalnaya Square near the Lenin monument, Vladivostok 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Primorye Regional Court 14/06/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Primorye Regional Court on 14/06/2017	3,500
5.	2567/18 08/12/2017	**Andrey Vladimirovich MINEYEV** 1990	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-corruption manifestation Nizhniy Novgorod 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 15/06/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest on 26/03/2017 for the sole purpose of drawing up a record of administrative offence; issue examined by the appeal court, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Nizhniy Novgorod Regional Court on 15/06/2017	4,000

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6.	5012/18 08/01/2018	**Garegin Robertovich ARAKELYAN** 1994	Terekhov Konstantin Ilyich Moscow	Anti-corruption manifestation Moscow 26/03/2017	Article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 20/07/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - unreasoned arrest on 26/03/2017 for the sole purpose of drawing up a record of administrative offence; detention in excess of 3 hours; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 20/07/2017	4,000
7.	5038/18 08/01/2018	**Nadezhda Leonidovna LOZINA** 1961	Terekhov Konstantin Ilyich Moscow	Anti-corruption manifestation Moscow 26/03/2017	Article 20.2 § 6.1 of CAO	fine of RUB 20,000	Moscow City Court 12/07/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - unreasoned arrest and detention on 26/03/2017 for the sole purpose of drawing up a record of administrative offence; detention in excess of 3 hours; raised on appeal	4,000

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8.	5283/18 17/01/2018	**Anastasiya Borisovna GRYZUNOVA** 1976	Terekhov Konstantin Ilyich Moscow	Anti-corruption manifestation Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 02/08/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest on 26/03/2017 for the sole purpose of drawing up a record of administrative offence; issue examined by the appeal court, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 02/08/2017	4,000
9.	5324/18 08/01/2018	**Vilen Vladimirovich SHEVCHENKO** 1975	Terekhov Konstantin Ilyich Moscow	Anti-corruption manifestation Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 16/08/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - Unreasonable arrest and detention on 26/03/2017 for the sole purpose of drawing up a record of administrative offence; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 16/08/2017	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]
10.	5343/18 08/01/2018	**Ilya Yuryevich BARABANOV** 1993	Terekhov Konstantin Ilyich Moscow	Anti-corruption manifestation Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 24/07/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - unreasonable arrest and detention on 26/03/2017 for the sole purpose of drawing up a record of administrative offence; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 24/07/2017	4,000

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11.	11525/18 17/02/2018	**Stanislav Sergeyevich SHISHKIN** 1972		Anti-corruption manifestation Kaliningrad 12/06/2017 Manifestation in support of Navalnyy's presidential campaign Kaliningrad 07/10/2017	Article 20.2 § 5 of CAO Article 20.2 § 8 of CAO	fine of RUB 10,000 50 hours of community work	Kaliningrad Regional Court 17/08/2017 Kaliningrad Regional Court 25/01/2018		4,000

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12.	12445/18 03/03/2018	**Dmitriy Viktorovich KARPENKO** 1970	Kholodtsova Inna Vadimovna Moscow	Anti-corruption manifestation Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 06/09/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest at the place of manifestation; lengthy detention in a van; then detention in a police station on 26/03/2017 for the sole purpose of drawing up a record of administrative offence; detention in excess of 3 hours; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 06/09/2017	4,000
13.	23661/18 04/05/2018	**Dmitriy Anatolyevich MILLER** 1982	Benyash Mikhail Mikhaylovich Sochi	Manifestation in support of A. Navalnyy Krasnaya / Lenin str, Krasnodar 07/10/2017	Article 20.2 § 5 of CAO	35 hours of compulsory work	Krasnodar Regional Court 15/11/2017		3,500

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14.	24447/18 10/05/2018	**Stanislav Anatolyevich RAKITIN** 1984	Yatsenko Irina Aleksandrovna Moscow	Anti-government manifestation Manezhnaya square, Moscow 05/11/2017	Article 19.3 § 1 of CAO	14 days of administrative detention	Moscow City Court 10/11/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 10/11/2017	5,000
15.	24744/18 08/05/2018	**Daniil Sergeyevich SKORBILIN** 1995	Yatsenko Irina Aleksandrovna Moscow	Anti-government manifestation Pushkinskaya square, Moscow 05/11/2017	Article 19.3 § 1 of CAO	14 days of administrative detention	Moscow City Court 08/11/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 08/11/2017	5,000

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16.	28308/18 04/06/2018	**Vladislav Aleksandrovich NOVIK** 1996	Kholodtsova Inna Vadimovna Moscow	Anti-corruption manifestation Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 19/01/2018	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - unlawful arrest and escorting to the police station on 26/03/2017 for the purpose of drawing up a record of administrative arrest; detention in excess of 3 hours; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 19/01/2018	4,000
17.	28687/18 04/06/2018	**Kseniya Olegovna CHURILOVA** 1992	Yelanchik Oleg Aleksandrovich Moscow	Anti-corruption manifestation Moscow 12/06/2017	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 04/12/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 12/06/2017. The police officers failed to draw up a record of the applicant's arrest and detained her for about 3 hours in a police van and another 3 hours at a police station. The total time of her detention exceeded 6 hours; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 04/12/2017	4,000

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18.	57050/18 24/11/2018	**Tatyana Stepanovna PRISHANOVA** 1950	Romanov Pavel Valeryevich Cheboksary	Opposition manifestation Smolensk 05/05/2018	Article 20.2 § 8 of CAO	60 hours of compulsory work	Smolensk Regional Court 22/08/2018		3,500
19.	57352/18 16/11/2018	**Mariya Andreyevna RABINOVICH** 1993	Ivanets Vyacheslav Sergeyevich Tbilisi, Georgia	Political manifestation Irkutsk 05/05/2018	Article 20.2 § 1 of CAO	fine of RUB 10,000	Irkutsk Regional Court 18/07/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Irkutsk Regional Court on 18/07/2018	3,500
20.	58067/18 13/11/2018	**Sergey Dmitriyevich VETLUZHSKIKH** 1998	Sholokhov Igor Nikolayevich Kazan	Opposition manifestation Kazan 05/05/2018	Article 20.2 § 5 of CAO	fine of RUB 15,000	Supreme Court of Tatarstan 04/07/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Supreme Court of Tatarstan on 04/07/2018	3,500

[1] Plus any tax that may be chargeable to the applicants.